

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Sealed Counterfactual Response Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** April 6, 2026

DOE submits this controlled response to demonstrate why the corrected hypothetical warrants affirmance. The unmodified 7(E) record identifies protected implementation relationships. The assumed corrections provide segment-linked physical-safety explanations, a documented contextual segregation process, and sealing findings tailored to each controlled counterpart.

The six capitalized exercise labels appearing below are content-free. They permit comparison of field placement without disclosing a predicate, sequence, value, assignment, safeguard, or communications route. The public response independently supplies every legal contention and uses descriptive notices instead.

Open Grid properly insists that the Court perform de novo review. That review favors DOE on the assumed evidence because every retained function is correlated and every public-access restriction has an individual explanation. The premise does not ask the Court to infer exemption from a document title or accept volume as proof.

This response is confined to the isolated docket. Its leased view may be revoked without affecting the public submission, and it establishes no event in the actual appellate history.

Finality and Counterfactual Separation

The originating court entered one final judgment, and Open Grid timely appealed. Section 1291 supplies authority to review that judgment and the sealing issues merged with it. Nothing about the training premise manufactures a second appealable decision.

The branch holds the actual district chronology constant while assuming improved evidence and findings on precisely three disputed areas. The 7(E) foundation does not change. The later appellate course on the actual docket remains unavailable as proof, and no other hypothetical branch may be combined with this one.

Open Grid argues that a premise cannot dictate a legal conclusion. DOE agrees. The Court independently applies FOIA and access doctrine. But an appellate remedy follows the record presented: a sufficiently specific, segregated, and narrowly sealed showing supports affirmance even when a materially weaker showing would not.

The correction neither expands the request nor changes search adequacy. It preserves twelve responsive records, their 200 pages, the production accounting, the administrative appeal, and the single final judgment. This disciplined isolation lets the Court test causal consequences without rewriting history. Any opinion must state that its conclusions are never-filed training results only.

Applicable Review Framework

DOE bears the exemption burden in de novo FOIA review. Competent declarations and functional descriptions can support summary judgment when they are detailed enough for adversarial testing and match the record. The requester need not accept conclusions, but speculation does not defeat an internally consistent showing.

Section 7(E) protects nonpublic implementation of techniques and procedures and separately addresses guidelines carrying circumvention risk. Section 7(F) protects information whose disclosure could reasonably be expected to endanger a person. Functional grouping is acceptable only after document-level review gives the group meaningful boundaries.

Segregability remains an affirmative statutory obligation. A valid exemption permits deletion of protected material, not retention of independently useful public text. The corrected worksheet records both release and retention decisions in context.

Judicial sealing is a separate inquiry. Notice, governing access source, alternatives, findings, and duration must be addressed. A public counterpart reduces closure but does not eliminate the need for reasons. The hypothetical district ruling contains those reasons, and the session system applies their bounds without enlarging them.

Qualifying Law-Enforcement Compilation

The approved Grid Sentinel materials organize exercises aimed at preventing and responding to unlawful attacks within a fictional critical-infrastructure program. Their custodian explains the preventive and protective objective, the approved version chain, and the use of decision relations during exercise review. They were not compiled merely because DOE kept administrative files.

Emergency and training materials can serve a law-enforcement purpose when directed toward criminal threats. The records' additional management utility does not negate that purpose. The fully released governance instruments demonstrate that DOE did not withhold every item associated with the program.

Nothing in the record concerns a live incident or usable system. The scope expressly excludes genuine configurations, code, credentials, telemetry, and personal contacts. The legal classification is based on the function assigned within the synthetic facts, not on actual sensitivity.

Open Grid does not contest this threshold in the corrected branch. Its arguments concern whether particular segments fall within 7(E) or 7(F) and whether surrounding words can be released. The Court can affirm compilation for a law-enforcement purpose while continuing to demand exact proof on those remaining questions.

Controlled 7(E) Categories

The revised account identifies Condition-Aster as the stand-in for a protected predicate, Sequence-Beryl as the stand-in for a relative ordering or implementation relation, and Value-Cinder as the stand-in for a guideline field. None is a value and none conveys usable order.

An authentic predicate connected to an authentic sequence would disclose how the exercise implements a nonpublic decision procedure. That is different from revealing that employees use a decision tree. For an authentic guideline, the worksheet additionally states why exposing the value could permit anticipation of a classification change and reasonably risk circumvention.

Reviewers release administrative material when it remains intelligible without the controlled relation. They retain a fragment only when its placement exposes how Condition-Aster relates to Sequence-Beryl or when subtraction leaves no meaningful information. Revision captions and ownership statements receive separate treatment.

This approach follows *Grey*: technique and procedure details are not forced through the guideline qualifier, and guidelines receive the risk analysis. It also respects the statutory burden by identifying the type and relationship rather than relying on the source's operational theme.

Evidence for the 7(E) Determination

Custodian comparison across current, superseded, exercise, and quality-review editions identifies where release could expose a changed relation. Supersession alone is not decisive. The question is whether the comparison reveals an implementation choice that remains nonpublic in the fictional program.

Paired excerpts let the Court observe neutral administration around Condition-Aster, Sequence-Beryl, and Value-Cinder. The controlled tokens reveal no substance but show why some placement arguments are relational. The public counterparts display category notices at the same logical subjects and retain all independently useful text.

The worksheet treats completely withheld records with particular care. It tests title blocks, approval entries, revision history, and general descriptions before concluding that the remaining operational organization is continuous. It explains whether a proposed fragment lacks meaning or would expose a relation through context.

Open Grid asks the Court to preserve these limits. The corrected ruling already does so. Affirmance of the defined operational-decision-tree target protects genuine predicate and order without declaring the whole Grid Sentinel suite exempt or foreclosing disclosure of general administration.

Controlled Line-Review Evidence

The re-review tests every retained segment for independent meaning. It asks whether text stands without Condition-Aster or Sequence-Beryl, whether position alone exposes their relation, whether a heading survives removal of Value-Cinder, and whether ordinary coordination can be separated from Role-Dovetail, Safety-Echo, or Channel-Fable.

Every result is correlated to source record, page, segment type, exemption, and rationale. Reviewers disclose title and ownership information, approval context, revision history, neutral section captions, exercise recordkeeping, general coordination, and closure administration. A retained item is accompanied by an explanation of relational or human-function meaning.

The documented process yields seventeen additional passages across eleven replacement images. Six images gain two passages and five gain one. The existing twelve-record inventory and 146-image production remain fixed because a replacement is not counted as another source page.

For wholly withheld records, the worksheet considers proposed administrative fragments individually and explains why location or loss of context prevents useful release. The corrected proof therefore answers the question left open by a bare statement that reviewers examined every page.

Statutory Treatment of Human-Safety Fields

Section 7(F) requires a reasonable expectation of danger to an individual's life or physical safety. It does not demand a name, an incident that already happened, or certainty of harm. The agency must nevertheless articulate why release of the particular information could facilitate the danger.

The assumed worksheet begins with record-by-record examination and then uses four functional groups. Role-Dovetail represents a protective duty assignment. Channel-Fable represents a communication category attached to such a function. Safety-Echo represents the safeguard reference. Value-Cinder represents an escalation placement only when human protection, rather than classification alone, is implicated.

Each group receives a distinct interference theory. Harmless captions, general coordination, and documentary administration do not enter a group simply because they appear nearby. Dual entries record two explanations instead of treating 7(E) as a proxy for 7(F).

This is the kind of meaningful categorical proof recognized by *Zaid* and consistent with *Electronic Privacy Information Center*. The correction supplies a safe but concrete causal pathway and preserves the separate duty to release nonexempt portions.

Application of the Four 7(F) Functions

Authentic disclosure of Role-Dovetail would reveal where protective responsibility sits and could help an interferer focus on a person performing that function. Channel-Fable could reveal how a person reaches the function and facilitate misdirection. Safety-Echo could identify the human safeguard an interferer would seek to frustrate.

Value-Cinder receives physical-safety treatment only in entries where the worksheet shows when protective involvement becomes relevant. A classification value lacking that link remains a 7(E) question, not a safety field. This limitation answers Open Grid's concern about indiscriminate overlap.

The page-level description states which function is present and how authentic release advances the predicted interference. It does not expose identity, location, timing, or means. A reviewer can therefore assess whether the inference is reasonable without obtaining the underlying value.

The labels here cannot create any risk and should not be mistaken for evidence by themselves. They demonstrate alignment between the controlled and public accounts. The evidence lies in the custodian's function-specific explanation and the corrected worksheet's correlation, both of which support the limited 7(F) ruling.

Specificity of the Corrected Index

The combined submission names each source record, identifies the relevant segment, classifies the function, states the exemption, records overlap, and explains the predicted harm. The declarations establish how the reviewers know the record and how the revised analysis was conducted.

For Condition-Aster and Sequence-Beryl, the index describes the protected implementation relation. For Value-Cinder, it distinguishes a guideline and supplies the circumvention inference. For Role-Dovetail, Channel-Fable, and Safety-Echo, it explains the human function and disclosure-to-interference route. Segregation entries state why visible text stands alone or cannot be detached.

That detail makes adversarial testing possible. Open Grid's brief challenges proximity, dual markings, fully withheld administration, and public-access tailoring. The Court can resolve each point using descriptions that stop short of an authentic value.

A Vaughn account need not disclose the very relationship it protects. The corrected presentation offers maximum safe specificity through functional prose and inert controlled placement. It is neither a verbatim secret nor a restatement of the statute. The Court should hold that it supplies an adequate factual basis for de novo judgment.

Affirmative Segregability Showing

The record universe remains twelve items and 200 pages. Full withholding covers fifty-four pages in three records, partial production covers 124 pages in seven, and complete disclosure covers twenty-two pages in two governance records. Eleven supplemental replacements refine the existing production.

The seventeen newly visible passages are distributed across four decision images, two matrix images, three current-appendix images, and two predecessor-appendix images. Their subject matter includes ownership, review captions, recordkeeping, broad coordination, closure, revision, and approval. Six images contain paired releases; five contain a single release.

Remaining controlled fields are confined to supported predicates, relations, guideline values, and human-function categories. For each proposed fragment in a wholly retained record, the worksheet records why it would expose an arrangement or lack standalone meaning. Reviewers did not treat a record label as an answer.

This evidence establishes both process and result. Open Grid offers no overlooked passage under the assumed record, only a request that the Court repeat the inquiry. FOIA requires a supported determination, not a remand after the agency has supplied and the court has examined one.

Legal Basis for the Corrected Sealing Order

The hypothetical court gave public notice and identified the applicable common-law and First Amendment access interests. It considered the interest in transparent adjudication alongside the asserted need to protect authentic implementation and human-function values discussed in judicial filings.

Findings are made for each of the three controlled briefs. Every pair has an equal-page public version containing independently phrased legal reasoning. Closure covers the inert-label counterpart rather than an entire docket category. Unrelated submissions remain public.

The court examined complete disclosure, targeted notices, narrative summary, restricted exhibits, and delayed release. It selected paired filing because public argument is immediately available and controlled comparison remains possible for an authorized judge or counsel. The order ends thirty days after mandate unless fresh findings support another result.

These are the procedural and substantive features required by *Company Doe*. The existence of a public copy alone would be insufficient, but here the court also states the interest, rejects broader closure, explains why the chosen passages require protection, and sets duration. The ruling is therefore narrowly tailored.

Enforcement of Narrow Access

Public projection is automatic. Without authorization, a viewer resolves the public brief only and receives no controlled locator, hash, size, page identity, or existence detail. Stable logical subjects remain usable across access states.

A session event must authorize a named participant for one disclosure and the exact pack closure. Court eligibility and the certificate do not grant access. Opening one controlled brief does not unlock another. Each authorized attempt defers asset resolution until the expected path, byte count, digest, readability, and logical pages pass content-addressed verification.

Upon success, the system exposes a leased snapshot within the session. Upon mismatch, it fails without substituting another asset. Revocation removes the sealed row and causes the same stable subject to resolve to the public counterpart again. Public output retains no controlled metadata.

These mechanics honor the corrected findings and allow immediate narrowing. They avoid permanent downloads, account-wide entitlement, and premature verification of inaccessible assets. The procedure is not offered as a reason to seal; it is the bounded means by which an independently justified sealing order is carried out.

Controlled Conclusion

The assumed record draws the lines Open Grid says the law requires. It protects Condition-Aster and Sequence-Beryl only as genuine implementation relationships, treats Value-Cinder under the correct guideline or limited human-function analysis, and confines 7(F) to Role-Dovetail, Channel-Fable, Safety-Echo, and qualifying escalation placement.

It documents contextual review, releases seventeen additional passages, and explains the remainder. It also replaces aggregate judicial closure with public counterparts, passage-specific reasons, considered alternatives, finite duration, verified grants, and revocation.

Because the corrections supply a legally sufficient basis, the Court should affirm each target and decline a remand. That result does not endorse the broader actual showing or change any actual appellate event. It answers only the isolated hypothetical.

Corin Pell certifies that this controlled response contains fourteen corresponding logical pages. Its dummy labels have no real referents. Service occurred through a verified exercise session on April 6, 2026, and no copy was placed on the actual docket.

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